

Opinion of the Court

acts are routinely subjected to scrutiny in criminal prosecutions, “the independence of the Executive Branch” may be significantly undermined. *Vance*, 591 U.S., at 800. The Framers’ design of the Presidency did not envision such counterproductive burdens on the “vigor[]” and “energy” of the Executive. The Federalist No. 70, at 471–472.

We must, however, “recognize[] the countervailing interests at stake.” *Vance*, 591 U.S., at 799. Federal criminal laws seek to redress “a wrong to the public” as a whole, not just “a wrong to the individual.” *Huntington v. Attrill*, 146 U.S. 657, 668 (1892). There is therefore a compelling “public interest in fair and effective law enforcement.” *Vance*, 591 U.S., at 808. The President, charged with enforcing federal criminal laws, is not above them.

Chief Justice Marshall’s decisions in *Burr* and our decision in *Nixon* recognized the distinct interests present in criminal prosecutions. Although *Burr* acknowledged that the President’s official papers may be privileged and publicly unavailable, it did not grant him an absolute exemption from responding to subpoenas. See *Burr II*, 25 F. Cas., at 192; *Burr I*, 25 F. Cas., at 33–34. *Nixon* likewise recognized a strong protection for the President’s confidential communications—a “presumptive privilege”—but it did not entirely exempt him from providing evidence in criminal proceedings. 418 U.S., at 708.

Taking into account these competing considerations, we conclude that the separation of powers principles explicated in our precedent necessitate at least a *presumptive* immunity from criminal prosecution for a President’s acts within the outer perimeter of his official responsibility. Such an immunity is required to safeguard the independence and effective functioning of the Executive Branch, and to enable the President to carry out his constitutional duties without undue caution. Indeed, if presumptive protection for the President is necessary to enable the “effective discharge” of his powers when a prosecutor merely seeks evidence of his